

HOUSE No. 3186

The Commonwealth of Massachusetts

PRESENTED BY:

Joseph D. McKenna

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act ensuring consistent reimbursement of PILOT funding.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Joseph D. McKenna</i>	<i>18th Worcester</i>	<i>1/7/2025</i>

HOUSE No. 3186

By Representative McKenna of Sutton, a petition (accompanied by bill, House, No. 3186) of Joseph D. McKenna for legislation to ensure that state payments in lieu of taxes (PILOT) to cities and towns not be less than the previous fiscal year. Revenue.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2888 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act ensuring consistent reimbursement of PILOT funding.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 16 of chapter 58 of the General Laws, as appearing in the 2014
2 Official Edition, is hereby amended by inserting after the word "section", in line 5, the following
3 words:-; provided, however, that if the measurable acreage of land pursuant to section 13 in the
4 city or town has remained the same or increased from the previous fiscal year, the total amount
5 reimbursed to a city or town by the commonwealth pursuant to section 17 shall not be less than
6 the amount that was reimbursed to the city or town in the previous fiscal year.

7 SECTION 2. Section 17 of chapter 58 of the General Laws, as appearing in the 2014
8 Official Edition, is hereby amended by inserting after the word "sixty-three", in line 7, the
9 following words:- ; provided, however, that if the measurable acreage of land pursuant to section
10 13 in the city or town has remained the same or increased from the previous fiscal year, the total

amount reimbursed to a city or town by the commonwealth shall not be less than the amount that was reimbursed to the city or town in the previous fiscal year.

SECTION 3. Section 108 of chapter 218 of the acts of 2016 is hereby amended by striking out section 16 and inserting in place thereof the following section:-

Section 16. The commissioner shall annually deliver, to the state treasurer, a statement of the fair cash valuation reimbursement percentage for each city and town in which state-owned land is located, and of the amount of money to be paid to each such city and town as determined by the following section; provided, however, that if the measurable acreage of state-owned land in the city or town has remained the same or increased from the previous fiscal year, the total amount reimbursed to a city or town by the commonwealth pursuant to said section shall not be less than the amount that was reimbursed to the city or town in the previous fiscal year.

SECTION 4. Said section 108 of said chapter 218 of the acts of 2016, is hereby further amended by striking out, in section 17, the first sentence and inserting in place thereof the following sentence:- The treasurer shall annually reimburse each city and town in which state-owned land is located, an amount in lieu of taxes upon the reimbursement percentages reported to the treasurer by the commissioner under the preceding section, determined by multiplying the percentages by the amount appropriated for such purposes for the fiscal year; provided, however, that if the measurable acreage of state-owned land in the city or town has remained the same or increased from the previous fiscal year, the total amount reimbursed to a city or town by the commonwealth shall not be less than the amount that was reimbursed to the city or town in the previous fiscal year.